

2. 9:00 AM CASE NUMBER: C22-00901

CASE NAME: SALEHOMOUM VS. BAHRAMI-DAGHIGH

\*HEARING ON MOTION IN RE: MONETARY SANCTIONS FOR FAILURE OF OMID BAHRAMI TO OBEY RULES

FILED BY: SALEHOMOUM, MOJDEH

\*TENTATIVE RULING:\*

Continued to 3/13/15/9AM, D22, due to unavailability of Judge Joni Hiramoto, the judge to whom the case is assigned.

3. 9:00 AM CASE NUMBER: C24-01031

CASE NAME: MATTHEW JACKSON VS. PAR WESTERN LINE CONTRACTORS, LLC

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO AMIEL J. PROVOSTY

FILED BY: PAR WESTERN LINE CONTRACTORS, LLC

\*TENTATIVE RULING:\*

Unopposed. GRANTED.

4. 9:00 AM CASE NUMBER: C24-03121

CASE NAME: MOLLY STAFFORD VS. CITY OF RICHMOND

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF RICHMOND

\*TENTATIVE RULING:\*

Before the Court is Defendant City of Richmond's Demurrer to Plaintiff's Complaint.

For the following reasons, Defendant's Demurrer is **sustained**.

#### **Allegations of Complaint**

Plaintiff alleges that she was caused to fall due to a crack in the sidewalk located near the properties of 4140 Fran Way LLC, in Richmond, California. The fall injured Plaintiff. It is alleged that the sidewalk was owned and maintained by Defendant City of Richmond. The complaint asserts two causes of action: (1) Premises Liability, and (2) General Negligence.

Plaintiff filed her form complaint on November 19, 2024. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days of after the filing of the complaint." (Cal. R. Ct. 3.110 (b).) "After a summons has been served on a person, proof of service of the summons ... **shall be filed**, unless the defendant has previously made a general appearance." (Code Civ. Proc. § 417.30.) The docket does not indicate that any proof of service of summons has been filed in this matter.

Defendant City of Richmond filed its demurrer on November 10, 2025.

#### **Legal Standard for Demurrer**

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) "The function of a demurrer is to